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JULIAN ACKERT

Managing Director

Julian Ackert is a Managing Director at iDiscovery Solutions (iDS) in Washington DC, with consulting and project management experience in the technology and litigation industries since the early 2000s.

He has extensive experience with forensic data collection, computer forensic analysis, creating and implementing preservation and collection strategies, managing electronic data processing and review endeavors, analyzing complex transactional data systems, and working with large multi-national corporations to establish and develop methodologies and best practices for litigation preparedness. Mr. Ackert has written expert reports and provided testimony on the forensic preservation, acquisition, and analysis of electronic information. Additionally, he has worked on several international projects involving complex data privacy, collection, and review challenges.

Mr. Ackert is a member of The Sedona Conference, Working Group 11 (Data Security and Privacy Library) and Working Group 12 (Trade Secrets). Prior to joining iDS, he was a Principal and New York regional lead at LECG and a Manager at FTI Consulting. Mr. Ackert began his career designing, developing, and implementing Knowledge Management / Content Management applications, government middleware solutions, and E-business applications for Federal Government services at Accenture.

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SELECT CONSULTING EXPERIENCE

- Directed a team of consultants on the identification, preservation, collection and production of structured data for an antitrust MDL. Implemented custom preservation and collection proto-cols and extracted approximately 10 terabytes of structured data from proprietary client data-base systems for analysis and review. Developed a structured data ESI protocol that governed the parameters of structured data productions.
- Managed a team of consultants on the analysis of 100s of millions of database records for a com-plex ligation in the commercial real estate industry. Analyzed trends and patterns in the data-base records that assisted counsel with identifying potentially relevant employees, partner re-lationships, and timeframes of interest.
- Managed a team of UK and US consultants on a data preservation and email data analysis endeav-or. Established an on-site review room in the UK and worked with UK outside counsel to en-sure that electronic discovery processes upheld EU data privacy laws.
- Directed a team of computer forensic consultants and contractors on forensic data preservation, backup tape recovery, email, and electronic file culling and search for approximately 100 cus-todians. Established an onsite triage center at an offshore facility to handle nearly 5 terabytes of data. Authored expert report on the methods, processes, types, and volumes of data pre-served, processed, and delivered for attorney review.
- Led a data analysis engagement consisting of metadata examination on Lotus Notes database documents. Acted as the client's Subject Matter Expert on Lotus Notes databases and au-thored expert testimony on the electronic discovery methods implemented during the project and subsequent project findings.
- Managed investigative team of computer forensic and complex data analysis consultants through the preservation, acquisition, and analysis of over 5 billion rows of NYSE trade data. Analysis period covered over 5 years of transactional data focusing on the alleged fraudulent trading activity. Additional responsibilities included administration of a SQL database containing key transactional trade data.
- Managed a data acquisition, e-file processing, and document review project in response to an SEC inquiry of over 45 custodians. Engagement required leading a multi-city team of computer fo-rensic professionals through the forensic acquisition, electronic data processing, and docu-ment review phase of a project with a condensed project timeline of three weeks.
- Led multi-national electronic discovery preservation and analysis team on an internal audit com-mittee investigation of a global metallurgy company. Engagement required managing com-puter forensic technicians through data preservation, forensic analysis, and automated culling of both Finnish and English enterprise email, financial data, and business documents related to the investigation.

EDUCATION

- University of Virginia, Charlottesville, VA
- School of Engineering and Applied Sciences
- B.S. Computer Science, January 1998

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SELECT PUBLICATIONS

- "GDPR and Data Maps: "X" Marks the Spot to Delete", Today's General Counsel, July 2018
- "5 Tips to Help Mitigate Insider Theft", Metropolitan Corporate Counsel, March 2017
- "A Practical Approach to Data Preservation and Collection", Metropolitan Corporate Counsel, May 2015
- "Big Data: The Elephant in The E-Discovery Room", Metropolitan Corporate Counsel, June 2013

TESTIFYING EXPERIENCE

1. Declaration on ESI search and production, Gilead Tenofovir Cases, JCCP No. 5043, July 2021
2. Deposition on forensic data analysis activities, Lainhart et. al. and Doyle et. al. v. Louisville/Jefferson County Metro Government, July 2021
3. Expert report on forensic data analysis activities, Lainhart et. al. and Doyle et. al. v. Louisville/Jefferson County Metro Government, June 2021
4. Deposition on computer forensic analysis activities, Havana Docs Corporation v. Carnival Corporation d/b/a Carnival Cruise Line, June 2021
5. Declaration on computer forensic analysis activities, eHealthInsurance Services, Inc. v. Healthpiolt Technologies LLC., May 2021
6. Declaration on computer forensic analysis activities and spoliation issues, Medidata Solutions, Inc. and MDSOL Europe Limited v. Veeva Systems, Inc., April 2021
7. Declaration on computer forensic analysis activities, Havana Docs Corporation v. Carnival Corporation d/b/a Carnival Cruise Line, March 2021
8. Cour Testimony on computer forensic analysis activities, State of Maryland v. Darrian McAfee
9. Expert report on forensic data analysis activities, Kaelin et. al. v. Louisville/Jefferson County Metro Gov-ernment, January 2021
10. Declaration on computer forensic analysis activities, Sequoia Benefits & Insurance Services DBA Sequoia Consulting Group v. Sageview Advisory Group et. al., January 2021
11. Declaration on computer forensic analysis activities, Doneyda Perez v. DirectTV Group Holdings LLC, et al., December 2020
12. Declaration on ESI search and production protocols, Trust-ED Solutions, LLC v. Gilbert, LLP, No-vember 2020
13. Declaration on computer forensic analysis activities, Smithfield Packaged Meats Sales Corp. v. Dietz & Watson, Inc. and Chris Conrad, November 2020
14. Declaration on ESI review and production effort, Gilead Tenofovir Cases, JCCP No. 5043, August 2020

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15. Declaration on collection and production of social media, Adrian Holley, et al. v. Gilead Sciences, Inc., August 2020
16. Declaration on collection and production of social media, Gilead Tenofovir Cases, JCCP No. 5043, July 2020
17. Declaration on computer forensic analysis activities, Doneyda Perez v. DirectTV Group Holdings LLC, et al., July 2020
18. Expert report on forensic data analysis activities, Smithfield Packaged Meats Sales Corp. v. Dietz & Watson, Inc. and Chris Conrad, June 2020
19. Declaration on ESI review and production effort, Adrian Holley, et al. v. Gilead Sciences, Inc., May 2020
20. Declaration on ESI production protocols, Adrian Holley, et al. v. Gilead Sciences, Inc., April 2020
21. Declaration on computer forensic analysis activities, Krista Brill v. Draeger, Inc. and Miguel Angel Armendariz, April 2020
22. Deposition on computer forensic analysis activities, Medidata Solutions, Inc. and MDSOL Europe Limited v. Veeva Systems, Inc., April 2020
23. Trial Testimony on computer forensic analysis activities, Smithfield Packaged Meats Sales Corp. v. Dietz & Watson, Inc. and Chris Conrad, March 2020
24. Declaration on computer forensic analysis activities, Jesus Jiminez v. CRC Property Management West, Inc., March 2020
25. Declaration on computer forensic analysis activities, Denver Cooley v. Solar Turbines Incorporated, February 2020
26. Supplemental expert report on forensic data analysis activities, Medidata Solutions, Inc. and MDSOL Europe Limited v. Veeva Systems, Inc., February 2020
27. Declaration on ESI data types, Anthony Robles, Individually and on Behalf of Other Persons Simi-larly Situated v. The Coca-Cola Company, Coca-Cola Refreshments USA, Inc., and Does 1-10, February 2020
28. Declaration on computer forensic analysis activities, Smithfield Packaged Meats Sales Corp. v. Dietz & Watson, Inc. and Chris Conrad, January 2020
29. Expert report on forensic data analysis activities, Medidata Solutions, Inc. and MDSOL Eu-rope Limited v. Veeva Systems, Inc., January 2020
30. Declaration on ESI collection and production effort, Kristopher Lawson, Vincent McCleery, and Sean McMurran, Individually and on Behalf of Other Persons Similarly Situated v. Love's Travel Stops & Country Stores, Inc., December 2019
31. Declaration on ESI review and production effort, Sandra Wolford et. al. v. Bayer Corp. et. al., De-cember 2019
32. Declaration on ESI systems and data recovery options, In the Matter of Certain Lithium Batteries, Battery Cells, Battery Modules, Battery Packs, Components Thereof, and Processes Thereof, Oc-tober 2019
33. Trial Testimony on computer forensic analysis activities, Futrend Technology Inc. v.

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Microhealth LLC, et. al., October 2019

34. Supplemental expert report on forensic data analysis activities, Futrend Technology Inc. v. Microhealth LLC, et. al., October 2019
35. Declaration on collection, search, and disposition process, Strategic Delivery Solutions, LLC v. Stallion Express, LLC, September 2019
36. Expert report on forensic data analysis activities, Futrend Technology Inc. v. Microhealth LLC, et. al., July 2019
37. Declaration on social media e-Discovery, Helen McLaughlin v. Bayer Essure Inc, et. al., May 2019
38. Declaration on ESI collection and search scoping, Sandra Wolford et. al. v. Bayer Corp. et. al., May 2019
39. Declaration on computer forensic analysis activities, Employee Benefit Services of Maryland, Inc. v. Nicholas Mafale, May 2019
40. Declaration on collection activities, IQVIA Inc. et. al. v. Veeva Systems, Inc., May 2019
41. Declaration on ESI collection and search scoping, Sandra Wolford et. al. v. Bayer Corp. et. al., April 2019
42. Declaration on production activities, Synchronisys, Inc. v. DataSync, Inc. et. al., February 2019
43. Declaration on collection and production activities, Catalus Capital USVI, LLC et. al. v. The Service-master Company, LLC, et. al., January 2019
44. Declaration on collection and search protocols, Strategic Delivery Solutions, LLC v. Stallion Ex-press, LLC, December 2018
45. Expert Report on computer forensic analysis activities, Quandra Speights v. The Boeing Company, December 2018
46. Affidavit on computer forensic analysis activities, Futrend Technology Inc. v. Microhealth LLC et. al., October 2018
47. Affidavit on preservation, collection and search protocols, Sarah Lankford Sprecher v. Leroy E. My-ers, Jr., September 2018
48. Declaration on computer forensic analysis activities, Yifat Oren et. al, v. Stefanie Cove, et. al., Au-gust 2018
49. Trial Testimony on metadata and computer forensic analysis activities, Broadcast Sports Interna-tional, LLC v. Gil Pascal, et. al., June 2018
50. Declaration on computer forensic analysis activities, Airgas, Inc. v. The Carlyle Group, Carlyle In-vestment Management, LLC, and Leslie Graff, June 2018
51. Supplemental Declaration on e-Discovery deduplication and production protocols, Helen McLaughlin v. Bayer Essure Inc, et. al., May 2018
52. Declaration on computer forensic analysis activities, Charlotte Pinckney and Kyle Pinckney v. The Pep Boys Manny Moe & Jack O/D/B/A Pep Boys, May 2018
53. Declaration on e-Discovery deduplication and production protocols, Helen McLaughlin v. Bayer Essure Inc, et. al., March 2018

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54. Declaration on e-Discovery deduplication and production protocols, Hannah Dorman et. al. v. Bayer, Corp, et. al., February 2018
55. Court Testimony on computer forensic analysis activities, MRP UO Partners, LLC, et. al, v. Ray-mond Rahbar, Jr. et. al., October 2017 – November 2017
56. Deposition on computer forensic analysis activities, MRP UO Partners, LLC, et. al, v. Raymond Rahbar, Jr. et. al., September 2017
57. Declaration on computer forensic analysis activities, MRP UO Partners, LLC, et. al, v. Raymond Rahbar, Jr. et. al., August 2017
58. Deposition on computer forensic analysis activities, Broadcast Sports International, LLC v. Gil Pas-cal, et. al., July 2017
59. Declaration on computer forensic analysis activities, Meridian Imaging Solutions, Inc. et. al. v. Om-ni Business Solutions LLC, et. al., July 2017
60. Declaration on computer forensic analysis activities, Yadkin Bank v. George Mason Mortgage, Inc. et. al, June 2017
61. Declaration on computer forensic analysis activities, Nichole Baibos v. ConnectYourCare LLC, May 2017
62. Expert report on forensic data analysis activities, Broadcast Sports International, LLC v. Gil Pascal, et. al., April 2017
63. Declaration on preservation and collection protocols, MD Helicopters, Inc. v. Aerometals, Inc., April 2017
64. Affidavit on computer forensic analysis activities, Yadkin Bank v. George Mason Mortgage, Inc. et. al, March, 2017
65. Court Testimony on metadata and computer forensic analysis activities, George Mason Mortgage, Inc. v. Caliber Home Loans, Inc., February 2017
66. Deposition on computer forensic analysis and deletion activities, Medidata Solutions, Inc. v. Michael Petrarca and Bioclinica, Inc., November 2016
67. Expert Rebuttal Report on data breach analysis, Employment Background Investigations, Inc. v. Federal Insurance Company, October 2016
68. Expert Report on data breach analysis, Employment Background Investigations, Inc. v. Federal In-surance Company, July 2016
69. Affidavit on computer forensic analysis activities, Compass Systems, Inc. v. Frank D. Deaton, July 2016
70. Affidavit on computer forensic analysis activities, Broadcast Sports International, LLC v. Gil Pascal, et. al., June 2016
71. Affidavit on forensic analysis and data recovery, Felicia M. Barlow Clar et. al, v. Kyle C. Muehlhauser, et. al, May 2016
72. Affidavit on preservation and collection protocols, IN RE: Blue Cross Blue Shield Antitrust Litiga-tion, December 2015
73. Affidavit and Court Testimony on computer forensic analysis activities, Stradtman v. Republic Ser-vices, Inc., May 2015

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74. Expert report and Deposition on metadata and forensic data analysis activities, Headfirst Baseball LLC, et. al., v. Robert Elwood, et al., May 2015
75. Expert report and Deposition on metadata and forensic data analysis activities, Integrated Direct Marketing, LLC v. Drew May and Merkle, Inc., April 2015
76. Expert report on metadata and forensic data analysis activities, George Mason Mortgage, Inc. v. Caliber Home Loans, Inc. et al., April 2015
77. Court Testimony on metadata and computer forensic analysis activities, JK Moving & Storage, Inc. v. Daniel Pesta, et al, August 2014
78. Declaration on forensic examination of document metadata, US District Court (New Jersey) Grand Jury investigation of a drug wholesale company, February 2014
79. Declaration on collection and analysis of document metadata, Everett v. Everett, February 2014
80. Affidavit and Expert Report on forensic data analysis activities, Symphony Health Solutions v. David Gascoigne, January 2014
81. Court Testimony on computer forensic analysis activities, Taylor v. Republic Services Inc, et al, January 2013
82. Affidavit on preservation and collection protocols, King Industries, Inc. v. United Association of Journeymen and Apprentices of the Pluming and Pipefitting Industry of the US and Canada, De-cember 2012
83. Deposition on issues associated with alleged metadata spoliation, Dyncorp International v. Jane T. Flowers, et al, July 2012
84. Trial Testimony on metadata, forensic analysis, and e-Discovery best practices, City Pharmacy of Elkton v. Northside Pharmacy, April 2012
85. Declaration on forensic collection of social media content, Peters v. Veez Grille, January 2012
86. Affidavit and Expert Report on metadata, forensic data analysis, and e-Discovery best practices, City Pharmacy of Elkton v. Northside Pharmacy, May 2011

SELECT SPEAKING ENGAGEMENTS AND CONFERENCES

1. Sedona Conference Working Group 11 – "Artificial Intelligence (AI) model transparency: Core principles in promoting transparency of AI and algorithms", October 2019
2. Sedona Conference Working Group 11 – "Data Security and Privacy Legal issues in Artificial Intel-ligence", March 2018
3. Webinar, Metropolitan Corporate Counsel – "Data Breach Response: Orchestrating Legal & Tech-nical Resources to Contain & Mitigate", March 2017
4. Sedona Conference Working Group 11 – "Privacy by Design", St. Petersburg, January 2017
5. CLE, ZwillGen, Cloud Computing and Mobile Devices, November 2016
6. Sedona Conference Working Group 11 – "Privacy by Design", Seattle, August 2016

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7. The Exchange (Today's General Counsel Institute) – "Strategic Use of Objections and Responses Under New Rule 34", Chicago, June 2016
8. CLE Panel, "Engaging and Managing the Presentation and Preparation of Expert Witnesses in Bankruptcy and Federal Court", May 2016
9. CLE Webinar, The Knowledge Group – "Mobile Data and BYOD: Mitigating eDiscovery and Data Breach Risks", April 2016
10. CLE Webinar, The Knowledge Group – "Mobile Privacy and Security Issues in 2015: Practical Guid-ance to Mitigate Data Breaches", August 2015
11. The Exchange (Today's General Counsel Institute) - "The Importance of Project and Process Man-agement", Chicago, June 2015
12. Masters Conference - "Cloud Computing and Mobile Devices – How to Be Prepared for Litigation", Philadelphia, July 2014
13. The Exchange (Today's General Counsel Institute) - "The 'eWorkplace' and its Impact on eDiscov-ery", New York, July 2014
14. Masters Conference - "Discussion and Debate Over Potential Changes to the Federal Rules of Civ-il Procedure", Chicago, May 2014
15. Masters Conference, "Predictive Analytics and Its Effect on Big Data", Chicago, May 2014
16. Chicago Association of Litigation Support Managers (CALSM-posium), "Forensic Collection Trends Now and into the Near Future", October 2013
17. CLE, Tydings & Rosenberg LLP, "E-Discovery Primer", October 2013
18. Masters Conference, "Cloud Computing and Mobile Device Usage: Challenges They Bring to Your Litigation", July 2013
19. CLE, Williams & Connolly LLP, "Mobile Forensics for Lawyers", January 2013
20. Chicago Association of Litigation Support Managers (CALSM-posium), "How to Prepare for E-Discovery Supplementation Obligations", October 2012
21. Paraben Forensic Innovations Conference, "Analyzing Structured Data", November 2010
22. The Exchange (Today's General Counsel Institute) – "Strategic Use of Objections and Responses Under New Rule 34", Chicago, June 2016
23. CLE Panel, "Engaging and Managing the Presentation and Preparation of Expert Witnesses in Bankruptcy and Federal Court", May 2016
24. CLE Webinar, The Knowledge Group – "Mobile Data and BYOD: Mitigating eDiscovery and Da-ta Breach Risks", April 2016
25. CLE Webinar, The Knowledge Group – "Mobile Privacy and Security Issues in 2015: Practical Guidance to Mitigate Data Breaches", August 2015
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27. Masters Conference - "Cloud Computing and Mobile Devices – How to Be Prepared for Litiga-tion", Philadelphia, July 2014

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28. The Exchange (Today's General Counsel Institute) - "The 'eWorkplace' and its Impact on eDis-covery", New York, July 2014
29. Masters Conference - "Discussion and Debate Over Potential Changes to the Federal Rules of Civ-il Procedure", Chicago, May 2014
30. Masters Conference, "Predictive Analytics and Its Effect on Big Data", Chicago, May 2014
31. Chicago Association of Litigation Support Managers (CALSM-posium), "Forensic Collection Trends Now and into the Near Future", October 2013
32. CLE, Tydings & Rosenberg LLP, "E-Discovery Primer", October 2013
33. Masters Conference, "Cloud Computing and Mobile Device Usage: Challenges They Bring to Your Litigation", July 2013
34. CLE, Williams & Connolly LLP, "Mobile Forensics for Lawyers", January 2013
35. Chicago Association of Litigation Support Managers (CALSM-posium), "How to Prepare for E-Discovery Supplementation Obligations", October 2012
36. Paraben Forensic Innovations Conference, "Analyzing Structured Data", November 2010

PROFESSIONAL AFFILIATIONS

- The Sedona Conference, Working Group 11 (Data Security and Privacy)
- The Sedona Conference, Working Group 12 (Trade Secrets)

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